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|     |                                                                                            | <p><b>The Final Accounting hearing is set for June 3, 2027 at 2PM in Department CX102.</b> Plaintiffs' Counsel must submit the settlement administrator's final report regarding distribution of the settlement funds at least sixteen (16) court days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount actually paid to Aggrieved Employees, the number of uncashed settlement checks, and the total amount of any unclaimed funds remitted to the State Controller's Office Unclaimed Property Fund. If the unclaimed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing.</p> <p>Plaintiffs to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 115 | <p><b>Chiem Saephan vs. Aspen Skilled Healthcare, INC.</b></p> <p><b>2024-01394825</b></p> | <p><b>1. Motion for Final Approval of Class Settlement</b><br/> <b>2. Motion for Attorney Fees</b></p> <p>The Court has reviewed the supplemental materials provided by Class Counsel and finds that they do not adequately address the previously identified issues and/or that they raise additional issues that must be resolved before final approval of the class settlement may be granted.</p> <p>Accordingly, Plaintiffs Chiem Saephan, by and through his successor in interest James Saephan; Patricia Miller, by and through her successor in interest, Natalie Gianne; and Terry Joy, by and through his Attorney in Fact, Vickie Joy's Motion for Final Approval of Class Action Settlement and Motion for Award of Attorneys' Fees, Costs, and Service Awards (collectively, "Motion") are <b>CONTINUED to June 18 at 2:00 p.m. in Department CX102</b> in order to give Class Counsel and the administrator an opportunity to address the issues identified below:</p> <p>1. On 5/8/2026, Class Counsel filed a new 5th supplemental declaration from the administrator dated 4/22/2026 (ROA #284), which attests that the correct "total number of Opt-Outs is 335 including 2 from illegible submissions. The list attached as Exhibit B to [the administrator's] Fourth Supplemental Declaration contained the correct number of Opt-Outs." (ROA #284, ¶ 4 [referencing ROA #268, Exh. B].)</p> <p>However, the referenced Exhibit B (which is now also attached to the 3rd revised proposed order and judgment at ROA #282) does</p> |

not actually state that there are 2 “illegible” submissions— instead, it lists only one (1) submission (i.e., Claim No. 3363) as “Illegible print.” Thus, it appears that the administrator was able to associate the other “illegible” submission with a Class Member and has listed that Class Member by name in Exhibit B as having opted out. (The Court also notes that Exhibit B and its equivalent attached to the proposed order both incorrectly identify the provided names as “EmployeeName.”)

But why was this “illegible” submission not listed as “Illegible print” but was instead listed using a Class Member’s name? Also, how did the administrator associate that “illegible” submission with a name? Is it based on the claim number assigned to that Class Member as indicated on the Class Notice Packet, including the opt-out request form that was then used to submit the opt-out request? If so, why was this same association not made for Claim No. 3363, but instead, Claim No. 3363 was listed as just “Illegible print”?

Accordingly, the Court orders the administrator to both (1) provide a written explanation as to the 2 allegedly “illegible” submissions and (2) provide copies of both opt-out request forms that the administrator received and considered to be “illegible” so that the Court may independently review these forms.

2. The administrator’s 5th supplemental declaration also attests that her previous 4th supplemental declaration incorrectly stated that there were 57 objections when there were only 56. (ROA #284, ¶ 5.) In addition, the administrator declares that as of the date of her 5th supplemental declaration, i.e., 4/22/2026, “2 of those Objections have since been withdrawn for Salvador Martinez and Arletta Shenefield. The attorneys have agreed to honor a late claim for both Class Members. As a result, the total number of Objections is now 54.” (*Id.*) Counsel confirms this in his 4th supplemental declaration filed on 5/8/2025. (ROA #288, ¶ 5.)

However, previously, the administrator submitted declarations attesting that as of various dates, the following numbers of Class Members will receive the following types of settlement payments:

- As of 11/3/2025:
  - 2,711 “current residents” will automatically receive \$250 each;
  - 50 presumably living, former residents who have submitted valid claims will receive \$225 each; and
  - Zero (0) successors of former residents have submitted claims. (ROA #195, ¶¶ 9-11.)
- As of 12/2/2025:

- 2,453 current residents will automatically receive \$250 each;
- 55 living, former residents who have submitted valid claims and will receive \$225 each; and
- Zero (0) successors of former residents have submitted claims. (ROA #200, ¶¶ 6-8.)
- As of 1/12/2026:
  - 2,385 current residents will automatically receive \$250 each;
  - 4,599 living, former residents who have submitted valid claims and will receive \$225 each; and
  - 126 successors who have submitted valid claims and will receive \$125 each. (ROA #215, ¶¶ 7-9.)
- As of 2/5/2026:
  - 2,386 current residents will automatically receive \$250 each;
  - 4,606 living, former residents who have submitted valid claims and will receive \$225 each; and
  - 126 successors who have submitted valid claims and will receive \$125 each. (ROA #230, ¶¶ 9-11.)

The administrator's declarations raises 2 issues:

- a. First, although the parties have now accepted 2 additional late claims from Martinez and Shenefield after the administrator's 2/5/2026 declaration, neither the administrator nor Class Counsel has attested to the category of claims/payments Martinez's and Shenefield's claims fall under (i.e., current residents who will receive \$250 payments; former residents who are living and will receive \$225 payments; or successors who will receive \$125). Therefore, the moving papers have not provided the Court with final, updated numbers on how many Class Members will receive each type of payment under the settlement—which is also information that must be included in the order granting final approval.
- b. Second, the administrator's declarations have attested to different numbers of "current residents" over time without explanation as to why this number has changed and what has happened to the claims of those Class Members who were once deemed "current residents" but are not longer part of the most recent count of "current residents" according to the administrator's declarations. Notably, the definition for "Current Residents" in the Settlement Agreement is "the residents who reside in Covered Facilities *at the time of Preliminary Approval at the time of distribution*" (emphasis added). Given that the time of Preliminary Approval and the time of distribution are two

different times, the Court orders Class Counsel to provide clarification as to the definition of "Current Residents" as set forth in the Settlement Agreement and how that definition has been applied by the parties and the administrator to determine which Class Members will receive the automatic \$250 payments versus which Class Members must submit claim forms to receive a settlement payment. Class Counsel must also confirm whether any Class Member, who was once deemed by the administrator to be a "current resident" but who is no longer counted by the administrator, has been denied the ability to submit a claim for payment as a former resident instead.

3. The Court has reviewed the 54 objections submitted by Class Counsel as part of the updated Exhibit D filed on 5/8/2026 at ROA #288. The Court is inclined to rule on the objections, as follows:

- Twenty-five (25) respondents submitted an objection form but did not provide any information as to the basis for their objection. (Sub-Exhs. D-2, D-3, D-8, D-9, D-13, D-14, D-16, D-17, D-22, D-23, D-28, D-29, D-31, D-32, D-34, D-35, D-41, D-43, D-45, D-46, D-47, D-48, D-49, D-50, D-54.) The Court **OVERRULES** these objections as containing insufficient information.
- Five (5) respondents submitted statements praising the facilities and/or the care received. (Sub-Exhs. D-1, D-4, D-5, D-12, D-27.) The Court considered these objections but **OVERRULES** them.
- Five (5) respondents objected that the settlement amount is too low. (Sub-Exhs. D-7, D-15, D-25, D-26, D-38.) The Court considered these objections but **OVERRULES** them.
- Five (5) respondents submitted statements that corroborated Plaintiffs' allegations of staffing shortages. (Sub-Exhs. D-6, D-18, D-37, D-42, D-44.) The Court considered these objections but **OVERRULES** them.
- Thirteen (13) respondents submitted objections raising other issues with the facilities not explicitly related to staffing shortages (e.g., poor treatment by staff). (Sub-Exhs. D-11, D-19, D-20, D-21, D-24, D-30, D-33, D-36, D-39, D-40, D-51, D-52, D-53.) The Court considered these objections but **OVERRULES** them.
- One final "objection" was submitted by Ruth Nemetz, who submitted an objection form, but all she wrote in the space provided for expressing her objection was: "I respectfully decline settlement." (Sub-Exh. D-10.) Substantively, this is not an objection, despite it being submitted on an objection form. Accordingly, the Court **OVERRULES** this objection.

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|            |                                                                                 | <p>Counsel is ordered to update the proposed order and judgment at ¶ 10 to incorporate these tentative rulings.</p> <p>Class Counsel must file supplemental papers addressing the Court's concerns no later than nine (9) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance.</p> <p>Plaintiffs are ordered to give notice of this Court's ruling within five (5) court days, and file proof of service.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>116</b> | <p><b>Gonzalez vs. Gold Coast Bakeries LLC.</b></p> <p><b>2021-01184280</b></p> | <p><b>Motion for Preliminary Approval of Class/PAGA Settlement</b></p> <p>The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$250,000 class action and PAGA settlement. The court has the following questions and comments:</p> <ol style="list-style-type: none"> <li>1. Were the supplemental papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected.</li> </ol> <p><u>As to the settlement:</u></p> <ol style="list-style-type: none"> <li>2. The court's 04-10-2025 minute order stated the "parties must provide an estimate of the total number of workweeks in the Covered Period." ROA 119. The number provided by defendant at mediation, even if the date of mediation was identified, which it is not, does not resolve this issue.</li> <li>3. The court's 04-10-2025 minute order stated the "deadline for submission of requests for exclusion, objections, and disputes should be 60 days after the mailing of the Class Notice." ROA 119. In addition to the changes already made, the definition of "Document Receipt Deadline" remains 30 days, which is thus inconsistent with those changes. Settlement § I(k). The definition should reflect 60 days.</li> </ol> |